ATTACHMENT V

INSTRUCTIONS, CONDITIONS, REPRESENTATIONS AND NOTICE TO OFFERORS

(This section of the solicitation will not be part of the purchase order award)

4.0 FAR 52.252-1, Solicitation Provisions Incorporated by Reference (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at these locations:

FAR: https://www.acquisition.gov/?q=browsefar
TAR: https://www.transportation.gov/administrations/assistant-secretary- administration/transportation-acquisition-regulation-tar

The following addenda to FAR provisions are provided in full text:

4.1 FAR 52.212-1 Instructions to Offeror –Commercial Products and Commercial Items SEP 2023

Addendum paragraph (b)(1)(12):
The Government will not pay any costs for the preparation of responses to this Request for Proposal (RFP). Failure to comply with the RFP instructions may render a quote to be non- responsive. Proposals shall adhere to the following:

1. Proposal must be received via email sent to roland.regan@dot.gov by the closing date/time in order to be considered. In the rare event that the Internet is down or inaccessible, the Offeror shall immediately notify the Contracting Officer prior to the RFP closing date and time to make arrangements for acceptance by other means. Failure to notify the Contracting Officer of internet inaccessibility prior to solicitation closing will automatically deem a proposal as late.

2. Quotation must be marked with Solicitation Number **6913G627Q300003.**

3. The time of receipt of quotation (with completed pricing and cost backup, and technical narration and schedule) is no later than **23 November 2026 at 1:00 PM Eastern Time**. The quotations must be submitted by email to: roland.regan@dot.gov

4. Questions regarding this RFQ should be submitted via email to roland.regan@dot.gov on or before **16 November 2026 at 1:00 PM Eastern Time**. The Contracting Officer will provide a response to all questions asked before this date. Questions may submitted after this date and time but the Contracting Officer does not guarantee a response will be provided.

Offerors shall cite their SAM UEI number on quote/proposal cover page.

Add paragraph (b)(1)(13):

Basis for Award – Proposal Format

The Offeror's proposal must include the following along with the completed SF-1449 and the other elements as described in this provision:

1. Pricing Backup: The Offeror's firm fixed price (FFP) proposal must for the period of performance (POP) include a price for the labor and equipment charges for **CLIN 00100**. In addition, prices for any additional costs anticipated to be incurred including laboratory analysis, survey, other equipment rentals, trucking, disposal, permits, etc., shall be included and detailed in the proposal.

2. The all-inclusive price should include an explanation of the work-plan, remediation, restoration of disturbed areas, and site close-out. Basis for award in descending order of importance in determining "Best Value":

- Prices (cost buildup)
- Schedule
- Technical explanation of this work (2-page narrative per CLIN demonstrating understanding, competence and efficiencies of the requirements)

- Past Performance (must demonstrate past work is related to SOW herein)

52.212-2 –EVALUATION –COMMERCIAL PRODUCTS and COMMERCIAL SERVICES DEVIATION – (AUG 2025)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

52.240-90 Security Prohibitions and Exclusions Representations and Certifications Deviation SEPT 2025

(a) Definitions. As used in this provision-— Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel,

products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—
(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and 9/11/25, 1:25 PM Part 52 - Solicitation Provisions and Contract Clauses file:///C:/GSA_Regs/GSA-Acquisition-FAR/html/copypaste-FullParts/FAR_Part_52.html 183/296

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act. Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically— (i) To restrict the free flow of unbiased information in Iran; or (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) Procedures. (1) Covered telecommunications and video surveillance. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) FASCSA Orders.

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation. 9/11/25, 1:25 PM Part 52 - Solicitation Provisions and Contract Clauses file:///C:/GSA_Regs/GSA-Acquisition-FAR/html/copypaste-FullParts/FAR_Part_52.html 184/296

(c) Covered telecommunications equipment or services representations. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) FASCSA Representation. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) Sudan certification. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or thirdparty audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) Iran Representation and Certifications.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $10,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resourcecenter/sanctions/SDN-List/Pages/default.aspx)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and 9/11/25, 1:25 PM Part 52 - Solicitation Provisions and Contract Clauses file:///C:/GSA_Regs/GSA-Acquisition-FAR/html/copypaste-

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(ii) (ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) (iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) Disclosure.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable),

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;
(B) Model number, OEM number, manufacturer part number, or wholesaler number; and
(C) Item description, as applicable. (

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at https://dibnet.dod.mil.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer. 9/11/25, 1:25 PM Part 52 - Solicitation Provisions and Contract Clauses file:///C:/GSA_Regs/GSA-Acquisition-FAR/html/copypaste-FullParts/FAR_Part_52.html 186/296

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) Executive agency review of disclosures. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver. (End of provision)

(End of provision)

4.2 The following FAR provisions are incorporated by reference:

52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation	JAN 2017
52.212-1	Instructions to Offeror –Commercial Products and Commercial Items	SEP 2023
52.223-4	Recovered Material Certification	MAY 2008
52.225-2	Buy American Certificate	OCT 2022
52.225-4	Buy American-Free Trade Agreements-Israel Trade Act Certificate	NOV 2023

4.3 TAR CLAUSES INCORPORATED BY REFERENCE:

1252.217-70	Guarantee	NOV 2022
1252.217-76	Liability and Insurance	NOV 2022
1252.222-70	Strikes or Picketing Affecting Timely Completion of the Contract Work	NOV 2022
1252.223-73	Seat Belt Use Policies and Programs	NOV 2022
1252.242-72	Dissemination of Contract Information	NOV 2022

The FAR and TAR provisions and clauses cited in this notice can be viewed at http://www.acquisition.gov/far and http://www.dot.gov/administrations/assistant-secretary-administration/transportation-acquisition- regulation-tar